

it falls into possession, the purchase of the ground-rents would be for the advantage of the remaindermen at the expense of the tenant for life.

23. **Fund in Court.**—Where the trust fund is in Court, it is still the duty of the trustees to watch the administration, and see that the purchase is a proper one, unless all the beneficiaries, whether under disability or not, are before the Court, and then the *cestuis que trust* by themselves or their guardians can look after their own interests, and the trustees are exonerated (c).

24. **Costs.**—The *costs* of the purchase are to be considered as part of it, and will come out of the same fund. The trustees, therefore, should provide for the costs, as well as for the purchase-money, though if this were not done, they would still have a lien for the costs properly incurred upon the estate purchased (d).

25. **Whether trust to be disclosed.**—The trustees, where the money is not under administration by the Court, need not *disclose the trust* to the vendor, either in the contract or in the conveyance. If they do so, it will embarrass the vendor by obliging him to see that the purchase-money is properly applied in pursuance of the trust.

26. **Declaration of trust.**—Where the legal estate is required to be vested in the *trustees*, they should, contemporaneously with the completion of the purchase, execute a formal declaration of trust, either by indorsement on the conveyance or by a separate instrument with notice of it indorsed on the conveyance, as otherwise the survivor would have it in his power to deal with the property as his own. Where notice of the trust to the vendor cannot be avoided, the declaration of trust may be embodied in the conveyance itself. This to some \*extent lengthens the conveyance, [\*506] and the vendor might in strictness claim the extra costs; but such a claim is very seldom, if ever, heard of in practice.

27. **Consequences of no declaration of trust.**—A *declaration of trust*, or some notice tantamount to it, not only obvi-

(c) *Davis v. Combermere*, 9 Jur. 76. (d) *Gwyther v. Allen*, 1 Hare, 505.